ANNOTATED AGENDA

BERKELEY CITY COUNCIL MEETING

Tuesday, October 13, 2026
6:00 PM

SCHOOL DISTRICT BOARD ROOM - 1231 ADDISON STREET, BERKELEY, CA 94702
TELECONFERENCE LOCATION – 2928 LINDEN AVENUE, BERKELEY, CA 94705

ADENA ISHII, MAYOR

COUNCILMEMBERS:

DISTRICT 1 – RASHI KESARWANI
DISTRICT 2 – TERRY TAPLIN
DISTRICT 3 – BEN BARTLETT
DISTRICT 4 – IGOR TREGUB
DISTRICT 5 – SHOSHANA O'KEEFE
DISTRICT 6 – BRENT BLACKABY
DISTRICT 7 – CECILIA LUNAPARRA
DISTRICT 8 – MARK HUMBERT

*This meeting will be conducted in a hybrid model with both in-person and virtual attendance. Attend this meeting remotely using Zoom. To request to speak, use the "raise hand" function in Zoom. To join by phone: Dial **1-669-254-5252 or 1-833-568-8864 (Toll Free)** and enter **Meeting ID: 165 648 5514**. To provide public comment, Press *9 and wait to be recognized by the Chair. To submit a written communication for the public record, email council@berkeleyca.gov.*

Live captioned broadcasts of Council meetings are available on B-TV (Channel 33) and via internet video stream. All Council meetings are recorded.

This meeting will be conducted in accordance with the Brown Act, Government Code Section 54953. Any member of the public may attend this meeting, however, if you are feeling sick, please do not attend the meeting in person. The City Council may take action related to any subject listed on the Agenda.

Pursuant to the City Council Rules of Procedure and State Law, the presiding officer may remove, or cause the removal of, an individual for disrupting the meeting. Prior to removing an individual, the presiding officer shall warn the individual that their behavior is disrupting the meeting and that their failure to cease their behavior may result in their removal. The presiding officer may then remove the individual if they do not promptly cease their disruptive behavior. "Disrupting" means engaging in behavior during a meeting of a legislative body that actually disrupts, disturbs, impedes, or renders infeasible the orderly conduct of the meeting and includes, but is not limited to, a failure to comply with reasonable and lawful regulations adopted by a legislative body, or engaging in behavior that constitutes use of force or a true threat of force.

***Government Code Section 84308 (Levine Act)** - Parties to a proceeding involving a license, permit, or other entitlement for use are required to disclose if they made contributions over $500 within the prior 12 months to any City employee or officer. Parties and participants with a financial interest are prohibited from making more than $500 in contributions to a decisionmaker for the 12 months after the final decision is rendered on the proceeding. The above contribution disclosures and restrictions do not apply when the proceeding is competitively bid, or involves a personnel or labor contract. For more information, see Government Code Section 84308.*

Preliminary Matters

Roll Call: 6:06 p.m.

Present: Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii

Absent: Bartlett

Councilmember Bartlett present at 6:13 p.m.

Land Acknowledgement Statement: *The City of Berkeley recognizes that the community we live in was built on the territory of xučyun (Huchiun (Hooch-yoon)), the ancestral and unceded land of the Chochenyo (Cho-chen-yo)-speaking Ohlone (Oh-low-nee) people, the ancestors and descendants of the sovereign Verona Band of Alameda County. This land was and continues to be of great importance to all of the Ohlone Tribes and descendants of the Verona Band. As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shellmound, and the Ohlone people who continue to reside in the East Bay. We recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unceded stolen land since the City of Berkeley's incorporation in 1878. As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today. The City of Berkeley will continue to build relationships with the Lisjan Tribe and to create meaningful actions that uphold the intention of this land acknowledgement.*

Ceremonial Matters:

1. Recognition of Outgoing Director of Police Accountability Kathy Lee and Welcoming Remarks from Incoming Director Mary Opler
2. Presentation from BART Board Director Barnali Ghosh
3. Recognition of United Against Hate Week 2026
4. Recognition of Pregnancy and Infant Loss Awareness Month 2026

City Manager Comments: None

City Auditor Comments:

The City Auditor noted the significant progress on the recommendations in the Homeless Response Team Audit Update.

Public Comment on Non-Agenda Matters: 10 speakers.

Public Comment by Employee Unions: 0 speakers.

Consent Calendar

Public Comment on Consent Calendar and Information Items Only: 20 speakers.

Action: M/S/C (Taplin/Kesarwani) to adopt the Consent Calendar in one motion except as indicated.
Vote: All Ayes.

1. **Amendment to BMC Chapter 2.99 to Establish Surveillance Technology Vendor Accountability Requirements and to Revise the Annual Surveillance Technology Reporting Schedule**
From: City Manager
Recommendation: Adopt the second reading of Ordinance No. 8,033-N.S. amending Berkeley Municipal Code Chapter 2.99 to require enforceable violation, sanction, and termination provisions in agreements with surveillance technology vendors; to change the annual Surveillance Technology Report to a calendar-year reporting period due to the City Council at the first regular meeting in March, beginning with a report in March 2028 covering October 1, 2026 through December 31, 2027; and to conform references to the Police Accountability Board.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Jennifer Louis, Police, (510) 981-5900
Action: Adopted second reading of Ordinance No. 8,033–N.S.

2. **Adoption of San Pablo Avenue Specific Plan**
From: City Manager
Recommendation: Adopt the second reading of Ordinance No. 8,034-N.S. to amend the Berkeley Municipal Code to create the San Pablo Commercial District (Chapter 23.202.160) and additional conforming amendments to other sections of the Municipal Code.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Jordan Klein, Planning and Development, (510) 981-7400
Action: Adopted second reading of Ordinance No. 8,034–N.S.

3. **Formal Bid Solicitations and Request for Proposals Scheduled for Possible Issuance After Council Approval on October 13, 2026**
From: City Manager
Recommendation: Approve the request for proposals or invitation for bids (attached to staff report) that will be, or are planned to be, issued upon final approval by the requesting department or division. All contracts over the City Manager's threshold will be returned to Council for final approval.
Financial Implications: Measure BB Paratransit Fund - $2,240,000
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Approved recommendation.

Consent Calendar

4. Contract No. 31900009 Amendment: Building Opportunities for Self-Sufficiency for McKinley House – 2111 McKinley Avenue, Berkeley, CA 94703
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager or designee to execute an amendment to Contract No. 31900009 with Building Opportunities for Self-Sufficiency (BOSS) for property management services at 2111 McKinley Avenue in Berkeley, updating the funding source designation from the Mental Health Services Act (MHSA) to the Behavioral Health Services Act (BHSA) and increasing the contract allocation by $104,474 to a total amount not to exceed $1,015,607.
Financial Implications: Behavioral Health Services Act Fund - $104,474
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5100
Action: Adopted Resolution No. 72,468–N.S.

5. Cost-Neutral Berkeley Chief Fire Officers Association (BCFOA) Medical Expense Reimbursement Plan (MERP) Side Letter Agreement
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute the Side Letter Agreement between the City of Berkeley and the Berkeley Chief Fire Officers Association (BCFOA) concerning the disposition of eligible unused sick leave conversion value for employees hired before June 30, 2014, and to authorize immediate implementation of the agreement pending Council ratification.
Financial Implications: See report
Contact: Janelle Rodrigues, Human Resources, (510) 981-6800
Action: Adopted Resolution No. 72,469–N.S.

6. Contract No. 31900122-1 Amendment: Rolling Orange, Inc. Website Maintenance and Support
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute an amendment to Contract No. 31900122-1 with Rolling Orange, Inc. for additional website maintenance and support for an amount not-to-exceed $115,000 over two years, and a total contract value not-to-exceed $909,300 from March 1, 2019 to June 30, 2028. The City intends to conduct an RFP at the end of FY2027 to establish a new contract by July 1, 2028.
Financial Implications: IT Cost Allocation Fund - $115,000
Contact: Kevin Fong, Information Technology, (510) 981-6500
Action: Adopted Resolution No. 72,470–N.S.

Consent Calendar

7. Contract No. 32000008 (11012) Amendment: Granicus, Inc. for Video Streaming Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to amend Contract No. 32000008 with Granicus, Inc., to continue providing live video streaming, on-demand archival video, podcasting, and web page subscription services, increasing the contract amount by $72,200 for a total not-to-exceed amount of $395,146 from July 1, 2017 to June 30, 2027.
Financial Implications: IT Cost Allocation Fund - $72,000
Contact: Kevin Fong, Information Technology, (510) 981-6500
Action: Adopted Resolution No. 72,471–N.S.

8. Contract: Protiviti Government Services Inc ("Protiviti"): Using General Services Administration ("GSA") Vehicle for Professional Services Purchase Orders
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to issue purchase orders with Protiviti for professional services using GSA purchasing vehicle no. GS35F-0280X for an amount not to exceed $425,000 through June 30, 2027
Financial Implications: IT Cost Allocation Fund - $425,000
Contact: Kevin Fong, Information Technology, (510) 981-6500
Action: Adopted Resolution No. 72,472–N.S.

9. Contract No. 32600093 Amendment: Paymun Building and Development, Inc. for Berkeley Marina K-Dock Restroom Renovation Project
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute an amendment to Contract No. 32600093 with Paymun Building and Development, Inc. for the Berkeley Marina K-Dock Restroom Renovation Project, increasing the amount by $11,000 for an amended total amount not to exceed $451,000.
Financial Implications: Marina Fund - $11,000
Contact: Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700
Action: Adopted Resolution No. 72,473–N.S.

Council Consent Items

10. BORP Adaptive Sports and Recreation's 50th Anniversary Celebration: Relinquishment of Council Office Budget Funds from General Funds and Grant of Such Funds
From: Councilmember Taplin (Author), Mayor Ishii (Co-Sponsor), Councilmember Bartlett (Co-Sponsor), Councilmember Tregub (Co-Sponsor)
Recommendation: Adopt a resolution approving the expenditure of an amount not to exceed $1,000 per councilmember, including $1,000 from Councilmember Terry Taplin, $100 from Mayor Adena Ishii, and $150 from Councilmember Igor Tregub, to support BORP Adaptive Sports and Recreation's 50th Anniversary Celebration.
Financial Implications: See report
Contact: Terry Taplin, Councilmember, District 2, (510) 981-7120
Action: Adopted Resolution No. 72,474–N.S. revised to include contributions from the following Councilmembers up to the amounts listed: Councilmember Blackaby - $100; Councilmember Bartlett - $250; Councilmember Kesarwani - $100; Councilmember Humbert - $150; Councilmember O'Keefe - $100; Councilmember Lunaparra - $150.

11. Creations Berkeley - Creations Dance Group Road to Hollywood Nov 27th through Nov 30th 2026 / Hip Hop Hollywood Dance Tour - Relinquishment of Council Office Budget Funds to General Fund and Grant of Such Funds
From: Councilmember Bartlett (Author)
Recommendation: Adopt a Resolution approving the expenditure of an amount not to exceed $250 per Councilmember, including $250 from the discretionary Council Office Budget of Councilmember Ben Bartlett, to Creations Berkeley Media & Performing Arts, Inc., to support Creations Dance Group participation in the 2026 Hip Hop Hollywood Dance Tour at Universal Studios Hollywood from November 27-30, 2026. The funds will be allocated to the City's General Fund from the Discretionary Council Office Budget of Councilmember Ben Bartlett and the Discretionary Council Office Budgets of any other Councilmembers who would like to contribute.
Financial Implications: See report
Contact: Ben Bartlett, Councilmember, District 3, (510) 981-7130
Action: Adopted Resolution No. 72,475–N.S. revised to include contributions from the following Councilmembers up to the amounts listed: Councilmember Blackaby - $100; Councilmember Tregub - $150; Councilmember Kesarwani - $100; Councilmember Humbert - $100; Councilmember O'Keefe - $100; Councilmember Lunaparra - $150; Mayor Ishii - $100.

Council Consent Items

12. Resolution in Support of Proposition 4, the California Fair Elections Act of 2026, on the November 3, 2026, General Election Ballot
From: Councilmember Tregub (Author), Mayor Ishii (Co-Sponsor), Councilmember Humbert (Co-Sponsor), Councilmember Lunaparra (Co-Sponsor)
Recommendation: Adopt a resolution in support of Proposition 4, the California Fair Elections Act of 2026, on the November 3, 2026, general election ballot, which would repeal the existing prohibition on public funding of candidate election campaigns and allow state and local governments to establish public campaign financing systems subject to specified requirements.
Financial Implications: Staff time
Contact: Igor Tregub, Councilmember, District 4, (510) 981-7140
Action: Adopted Resolution No. 72,476–N.S.

Action Calendar – Public Hearings

13. Revisions to the Approved Environmental Health Fee Schedule
From: City Manager
Recommendation: Conduct a public hearing and, upon conclusion, adopt a Resolution: 1. Approving revisions to the fee schedule for the Environmental Health Division (EHD) effective October 13, 2026, and, 2. Rescinding Resolution No. 72,308 N.S. effective October 13, 2026.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5100

Public Testimony: The Mayor opened the public hearing. 1 speaker.
M/S/C (Blackaby/Tregub) to close the public hearing.
Vote: Ayes – Kesarwani, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Taplin, Bartlett.

Action: M/S/C (Blackaby/Lunaparra) to adopt Resolution No. 72,477–N.S. approving revisions to the fee schedule for the Environmental Health Division (EHD) effective October 13, 2026, and rescinding Resolution No. 72,308 N.S.
Vote: Ayes – Kesarwani, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Taplin, Bartlett.

Action Calendar – Public Hearings

14. Amendments to Berkeley Municipal Code (BMC) Section 23.304.100 (Site Features in Residential Districts) to require undergrounding of electrical transformers on private land
From: City Manager
Recommendation: Conduct a public hearing and upon conclusion adopt the first reading of an Ordinance amending Berkeley Municipal Code (BMC) Section 23.304.100 (Site Features in Residential Districts) to prohibit the above-ground installation of electrical transformers serving new residential, commercial, and mixed-use projects grade on private property, consistent with the Planning Commission's recommendation.
Financial Implications: See report
Contact: Jordan Klein, Planning and Development, (510) 981-7400

Public Testimony: The Mayor opened the public hearing. 7 speakers.
M/S/C (Tregub/Lunaparra) to close the public hearing.
Vote: Ayes – Kesarwani, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Taplin, Bartlett.

Action: M/S/C (Tregub/O'Keefe) to adopt the first reading of Ordinance No. 8,035–N.S. amending Berkeley Municipal Code (BMC) Section 23.304.100. Second reading scheduled for October 27, 2026.
Vote: Ayes – Kesarwani, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Taplin, Bartlett.

Action Calendar – Old Business

15. Affordable Housing Preference Policy: Pilot Assessment and Policy Update
(Continued from September 29, 2026)
From: City Manager
Recommendation: Adopt a Resolution rescinding Resolution No. 70,960-N.S. to revise and update the Affordable Housing Preference Policy for new residential housing units created via the Housing Trust Fund (HTF) and Below Market-Rate (BMR) programs.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5100
Action: 10 speakers. M/S/C (Lunaparra/Bartlett) to adopt Resolution No. 72,478–N.S. to revise and update the Affordable Housing Preference Policy.
Vote: All Ayes.

Action Calendar – New Business

16. Establish 2027 City Council Meeting Schedule
From: City Manager
Recommendation: Review the proposed modifications to the meeting schedule, including options for a shift in the timing of the summer recess, and adopt a Resolution establishing the City Council regular meeting schedule for calendar year 2027, with starting times of 6:00 p.m.
Financial Implications: None
Contact: Mark Numainville, City Clerk, (510) 981-6900
Action: 2 speakers. M/S/C (Humbert/O'Keefe) to adopt Resolution No. 72,479–N.S. revised to remove the August 31, 2027 regular meeting.
Vote: Ayes – Kesarwani, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Taplin, Bartlett.

Information Reports

17. Homeless Response Team Audit Status Report
From: City Manager
Contact: Peter Radu, City Manager's Office, (510) 981-7000
Action: Received and filed.

18. Inclusionary Housing Program Annual Report for Fiscal Year 2026
From: City Manager
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5100
Action: Moved to Action Calendar for discussion. Consideration of Items 18, 19, and 20 taken up jointly. 3 speakers.

19. Measure O Impacts on Affordable Housing Development in Berkeley
From: City Manager
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5100
Action: Moved to Action Calendar for discussion.

20. Condominium Conversion Program Annual Report for Fiscal Year 2026
From: City Manager
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5100
Action: Moved to Action Calendar for discussion.

21. Landmark Preservation Ordinance Notice of Decision: 701 University Avenue / #LMSAP2026-0007
From: City Manager
Contact: Jordan Klein, Planning and Development, (510) 981-7400
Action: Received and filed.

Public Comment – Items Not Listed on the Agenda - 7 speakers.

Adjournment

Action: M/S/C (Blackaby/Humbert) to adjourn the meeting.
Vote: Ayes – Kesarwani, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Taplin, Bartlett.

Adjourned at 10:21 p.m.

Communications

Zoning/Upzoning
1. Heather Siglin
2. Barbara Gilbert
3. Madan Kumar (2)
4. Pamela & Mark

4th/9th and Camelia
5. Crystal Turnerhill (2)
6. Peter Radu
7. Stephanie Chang (4)
8. Cheryl Brewster
9. Maria Chairez
10. Nikhila Pai
11. Theresa Thornton
12. Nancy Priewe
13. Jaime Perkins
14. Elisa Pace
15. Betty Feliciano
16. Steve Tornallyay

2128 Oxford St.
17. Steven Schuyler

FLOCK/ALPRs
18. Kate Rassbach (2)
19. Sam Holtzman
20. Chris Gilbert
21. Peter Diebler
22. Peter Metcalf

Use of Services Concern
23. Mimi

Road Obstruction Concern
24. CC Miksza

Measure Z

25. Affordable Berkeley

Junk Pick-Up
26. Patrice Ignelzi

Inclusion on Consequential Decisions
27. Vanessa Vega
28. Beatriz Leyva-Cutler

Claim Concerns
29. Erin Spencer

Product Sale Concern
30. Chck9988

Berkeley Rides for Seniors and Disabled
31. Loi Fischer

Vandalism Concern
32. K Noel

South Berkeley Search
33. Mary Behm-Steinberg on behalf of the Human Welfare and Community Action Commission

Parking Meter Concerns
34. Gillian Scharff

Public Hearing Notice Concern
35. Carol Denney

Class Cancellations and Refund Request
36. Alyssa Cauble May

Traffic Safety Concern
37. Kenny Yu

Ashby BART
38. Asmara Marek (2)
39. Julie Twichell
40. Eunice Lee

John Muir Campus Concerns
41. Lauren Wynveen
42. Deborah Russell
43. Nina Begus

44. Niloufar Abdollahi

Hopkins
45. Shirley Kirsten
46. Stephen Alpert (2)
47. Steve Tracy
48. Nicholas Adams

Milvia and Cedar Safety Concern
49. Nicole

Harrison St. and 8th St.
50. Frederick Hertz (3)
51. Marianne Riddle
52. Russbumper
53. Yesica Prado
54. Erin Spencer
55. Sarah Clegg
56. Barry Braden
57. Andrea Green

Mural Restoration
58. Summer Brenner

Restaurant Inspections
59. David Lerman (2)

Vulnerable Homeowners Referral
60. Darlene Bronson on behalf of the Commission on Aging

Encampments
61. Caroline Winnett
62. Ernie Sexton
63. Charlotte Banuelos
64. Lucia Hammond (2)
65. Peter Radu
66. John Waters
67. Jeff Cooksey
68. Marianne Riddle

Ferry Development
69. Elsa Tranter

Supplement Complaint
70. Francis Lee

Local Natural Grass Soccer Fields Concern
71. Ted Steen

Civil Rights Protections
72. Mathara

Commendation for Peter Radu
73. Adam Weisberg

Richmond Tiny Homes
74. Boona Cheema

Park Renaming
75. Virginia Browning (2)

Ongoing Safety Concern
76. Eden Winograd

Impact Fund
77. Moni Law

Zone Zero Regulations
78. Zohra Kalinkowitz

URLs
79. Russbumper

E-Scooters
80. Robert Borghese (5)
81. Carson Lepre (2)
82. Deven Mitchell

Forwards
83. Russbumper
84. Eid Abdallah (14)

Supplemental Communications and Reports 1

- None

Supplemental Communications and Reports 2

Item 2: Adoption of San Pablo Avenue Specific Plan
85. Kelly Hammagren (2)
86. Summer Brenner
87. Sally Nelson
88. Meryl Siegal

Supplemental Communications and Reports 3

Ceremonial Matters #2: Presentation from BART Board Director Barnali Ghosh

89. Barnali Ghosh
90. BART Safety & Security

Ceremonial Matters #3: Recognition of United Against Hate Week 2026

91. Unknown

Item #2: Adoption of San Pablo Avenue Specific Plan

92. Stephen Alpert (2)

Item #14: Amendments to Berkeley Municipal Code (BMC) Section 23.304.100 (Site Features in Residential Districts) to require undergrounding of electrical transformers on private land

93. Presentation submitted by the Planning and Development Department
94. Brianna Morales on behalf of the Housing Action Coalition
95. Unknown

Item #15: Affordable Housing Preference Policy: Pilot Assessment and Policy Update *(Continued from September 29, 2026)*

96. Presentation submitted by Health, Housing, and Community Services Department

Miscellaneous

97. Unknown